**IN THE UNITED STATES BANKRUPTCY COURT**
**FOR THE MIDDLE DISTRICT OF ALABAMA**
**NORTHERN DIVISION**

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| IN RE:<br><br>EXAMPLE DEBTOR, LLC<br><br>_____ | CASE NO. 00-00000-XXX-11<br><br>Chapter 11 |

**MOTION FOR RELIEF FROM THE AUTOMATIC STAY AND BRIEF IN SUPPORT**

# I. JURISDICTION

1. The Court has jurisdiction over this contested matter under 28 U.S.C. §§ 157 and 1334. This is a core proceeding under 28 U.S.C. § 157(b)(2)(G).

2. Movant asks for relief under 11 U.S.C. § 362(d) and Federal Rule of Bankruptcy Procedure 4001(a).

# II. BACKGROUND

3. On [DATE], the Debtor filed a voluntary petition under Chapter 11 of the Bankruptcy Code.

4. Movant holds a secured claim against the Debtor's equipment, described in the security agreement attached as Exhibit A (the "Collateral").

5. The Debtor has made no payment to Movant since [DATE]. The unpaid balance is [$AMOUNT] as of the date of this motion.

# III. GROUNDS FOR RELIEF

6. Under 11 U.S.C. § 362(d)(1), the Court shall grant relief from the stay for cause, including lack of adequate protection of an interest in property.

7. The Debtor has no equity in the Collateral, and the Collateral is not necessary to an effective reorganization.

8. Movant asks that the stay be modified so that Movant may exercise its rights under applicable non-bankruptcy law with respect to the Collateral.

WHEREFORE, Movant asks the Court to modify the automatic stay under 11 U.S.C. § 362(d) to permit Movant to enforce its rights in the Collateral, and to grant such other relief as the Court finds just.

Respectfully submitted,

[FIRM NAME]

/s/ [Attorney Name] (Bar No. [_____])
[Mailing address]
[City], AL [ZIP]
Tel: [(__) -]
Email: [address]
Counsel for Movant [Movant Name]

**CERTIFICATE OF SERVICE**

I certify that on [DATE], I served a copy of this motion on the debtor, the debtor's counsel, the chapter trustee and all parties requesting notice by [method] at the addresses shown in the Court's CM/ECF system and by mail to the addresses shown on the attached list. [Signature block]